

SOFTWARE SERVICES AGREEMENT

This Software Services Agreement ("Agreement") is entered into as of March 1, 2026 ("Effective Date") by and between **Northwind Analytics, Inc.**, a Delaware corporation ("Vendor"), and **Acme Industries, LLC**, a New York limited liability company ("Client").

1. Services

Vendor shall provide Client with access to its hosted analytics platform (the "Platform") and related support services as described in Exhibit A. Vendor shall use commercially reasonable efforts to maintain platform availability of 99.5% measured monthly, excluding scheduled maintenance.

2. Fees and Payment

Client shall pay Vendor a recurring subscription fee of **USD 240,000 per year**, invoiced annually in advance. Fees are non-refundable. Vendor may increase fees by up to 15% at each renewal upon thirty (30) days' written notice. Late payments accrue interest at 1.5% per month.

3. Term and Termination

The initial term is three (3) years from the Effective Date and will auto-renew for successive one-year terms unless either party provides ninety (90) days' written notice of non-renewal. Client may terminate for material breach by Vendor only after a sixty (60) day cure period. Early termination by Client for convenience requires payment of **100% of the remaining contract value** as liquidated damages.

4. Data and Intellectual Property

Client retains ownership of all data submitted to the Platform ("Client Data"). Client grants Vendor a perpetual, irrevocable, royalty-free, worldwide license to use, reproduce, and create derivative works from anonymized and aggregated Client Data for the purpose of improving Vendor's products and training machine learning models. Vendor owns all rights, title, and interest in the Platform and any improvements thereto.

5. Confidentiality

Each party agrees to protect the other's Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care. Confidentiality obligations survive for two (2) years following termination of this Agreement.

6. Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, EACH PARTY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED **THE FEES PAID BY CLIENT IN THE THREE (3) MONTHS** PRECEDING THE CLAIM. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

7. Indemnification

Client shall defend, indemnify, and hold harmless Vendor and its affiliates, officers, directors, employees, and agents from and against any and all claims, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or related to Client's use of the Platform, Client Data, or breach of this Agreement.

8. Governing Law and Disputes

This Agreement shall be governed by the laws of the State of Delaware without regard to conflicts of law principles. Any dispute arising under this Agreement shall be resolved exclusively by binding arbitration administered in San Francisco, California, with each party bearing its own costs. Client expressly waives any right to a jury trial or class action.

9. Assignment

Vendor may assign this Agreement, in whole or in part, without Client's consent, including in connection with a merger, acquisition, or sale of substantially all of its assets. Client may not assign this Agreement without Vendor's prior written consent.

10. Entire Agreement

This Agreement, including all exhibits, constitutes the entire agreement between the parties and supersedes all prior agreements, whether written or oral, relating to the subject matter hereof.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Northwind Analytics, Inc. _____

Acme Industries, LLC _____